

its main objection is related to Plaintiff's use of two attorneys and a paralegal for trial, resulting in 389.7 hours billed for a 13-day trial (156.1 for SW, 138.9 for DF, and 94.7 for RSW), for a total of \$192,177.50. This is a valid objection. Plaintiff states in her motion that she is only seeking half of the amount billed by RSW (\$26,042.50 of \$52,085 billed) because SW and DF "were the primary persons at trial," attending every day, while RSW attended most of the trial and assisted as needed. (Motion, p. 9:7-1; Reply, pp.2:7-11, 4:13-17.) However, from the papers and invoices provided by Plaintiff, it appears RSW was simply "attending the trial" for the most part, and Plaintiff fails to show how a third member of her legal team, billing out at \$550 per hour, was reasonable or necessary. As Plaintiff fails to establish the time and fees incurred by RSW were reasonable or necessary, the entire amount billed by him should be deducted from the lodestar. This results in a reduced fee award of **\$176,635.50** (\$219,250.50-\$42,615).

Further, the Court declines to apply a multiplier. The purpose of the lodestar enhancement is "to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchem v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Id.* at 1138.) In the present case, there is no reason for an enhancement. This was an uncomplicated case and the alleged risk due to counsel's contingency fee should already be accounted for in counsel's hourly rate.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2406169	JUAREZ vs FLORENCE AVENUE LLC	MOTION TO STRIKE PLAINTIFFS SUPPLEMENTAL EXPERT DESIGNATION

Tentative Ruling:

The Court GRANTS Defendant's Motion to Strike.

Facts/Procedural Summary

This case involves a lease between Defendant Florence Avenue, LLC and Plaintiffs Marco Garcia Juarez and Hugo Armando Rodriguez for a commercial property, and disputes between the parties relating to the terms of the lease. (First Amended Complaint ¶¶6.) On October 1, 2019, the parties entered into a Commercial Lease Agreement for property located at 155-156 E. La Cadena Drive, 170-190 E. La Cadena Drive, and 155 & 175 Iowa Avenue, Riverside, California. Plaintiffs demolished

a sales building, patio cover, and center parking lot pole on the property. The parties dispute whether Plaintiffs were obligated to restore those structures, and if not, what the resulting change in value of the property is for purposes of any damages claim.

The operative First Amended Complaint (FAC) seeks declaratory relief. Specifically, Plaintiffs request a judicial declaration of the following: (1) the fraudulent term sheet is unenforceable; (2) the agreement to lease between the parties did not require Plaintiffs to replace any of the demolished structures after the termination of the tenancy; (3) the agreement to lease between the parties did not require Plaintiffs to pay the replacement cost of any of the demolished structures after the termination of the tenancy, or, alternatively; (4) the statute of limitations has run on any claim by Plaintiff for breach of the purported lease due to the demolition and paving work by Defendants; and (5) Defendant was not entitled to hold back Plaintiffs' deposit payment for failure to rebuild the demolished building. (FAC, Prayer.)

Defendant Florence Avenue, LLC filed a Cross-Complaint on April 28, 2025, for breach of lease against Juarez and Rodriguez.

The parties' simultaneous exchange of expert witness information occurred on July 9, 2026. Florence designated retained experts on the subject of the cost to restore the buildings and valuation. Plaintiffs did not designate any experts and instead reserved the right to designate experts in response to Florence's designation. Plaintiffs served a purported supplemental designation twenty (20) days later, the last day to serve a valid supplement.

Defendant Florence Avenue, LLC brought this motion via ex parte on July 31, 2026. The court granted the ex parte application and advanced the September 23, 2026, hearing date to August 10, 2026. An Opposition was filed on August 4, 2026.

Trial is set for August 28, 2026.

Motion to Strike

Defendant argues under *Fairfax v. Lords* (2006) 138 Cal.App.4th 1019 (*Fairfax*), Plaintiffs' supplemental designation of an expert must be stricken. Defendant argues where a party has every reason to anticipate the other side will designate an expert on an issue, that party has a corresponding obligation to designate the expert it expects to have testify on the issue. Defendant distinguishes *Du-All Safety, LLC v. Superior Court* (2019) 34 Cal.App.5th 485 (*Du-All*), which narrowed *Fairfax's* ruling. Defendant argues Plaintiffs' "reservation-only" expert designation was improper because the restoration cost and valuation issues were squarely foreseeable. Defendant also argues Plaintiffs' supplemental designation independently violates the simultaneous exchange requirement. Defendant argues it will be prejudiced if the court does not strike Plaintiffs' designation.

Plaintiffs oppose the motion. Plaintiffs argue Florence lacks standing to bring its motion to strike because its own expert exchange was incomplete. Plaintiffs then argue their supplemental designation satisfied Section 2034.280. Plaintiffs contend they did not act unreasonably and Florence has intentionally delayed expert depositions to try and claim prejudice. Finally, Plaintiffs argue Florence misstates *Fairfax* and *Du-All* controls.

Analysis

Once a demand is made by a party to the action, obligating all parties to “simultaneously” exchange information concerning each other’s expert trial witnesses (CCP § 2034.210(a)), the exchange must generally be made on or before the date specified in demand, which must be at least 20 days after service of the demand or 50 days before the trial date, whichever is closer to the trial date. (CCP § 2034.230(b).) Generally, to add to the list or change the designation, the party must obtain a court order based on a motion to augment a witness list or amend an expert witness declaration complying with CCP § 2034.610.

A party may also serve a supplemental expert witness disclosure. (CCP § 2034.280(a); *Du-All Safety, LLC v. Superior Court* (2019) 34 Cal.App.5th 485, 496-497.) Under section 2034.280, following review of the experts the other side has disclosed, a party may file a supplemental expert witness disclosure of additional experts subject to the following limitations: (1) the additional experts is only to “express an opinion on a subject to be covered by an expert designated by an adverse party to the exchange”; and (2) the party supplementing the expert witness list has not previously retained an expert to testify on that subject. (CCP § 2034.280(a).) But such supplemental expert witness list must be submitted within 20 days after the initial exchange, and the party supplementing the list must make the new experts available immediately for depositions. (CCP § 2034.280(a) and (c).)

Defendant focuses on two cases. First, *Fairfax v. Lords* (2006) 138 Cal.App.4th 1019, was a medical malpractice action. Plaintiff served his expert witness designation naming an expert. On the same day, Lords served a document titled “First Designation of Expert Witnesses” that did not identify any retained expert. Instead, the document stated Lords “hereby gives notice that he is not designating any retained experts for the first exchange of expert witness information.” (Id. at 1022.) Lords later designated two expert witnesses and Fairfax moved to strike the designation. The Court of Appeal noted this was not a situation where Lords was somehow surprised by the contents of Fairfax’s expert designation. (Id. at 1027.) Fairfax’s expert was retained to address the only disputed issue in the case – whether Lords’ treatment of Fairfax complied with the standard of care. (Ibid.) The Court explained: “Because Lords had every reason to anticipate such a designation, he had a corresponding obligation to designate whatever expert he expected to have testify on the issue *at the same time*.” (Ibid (emphasis in original).) The Court of Appeal held the trial court should have granted Fairfax’s motion to strike Lords’ second expert designation as “Lords had no right to simply delay his

designation of retained experts until after he had the opportunity to view the designation timely served by Fairfax.” (Ibid.)

Du-All Safety, LLC v. Superior Court (2019) 34 Cal.App.5th 485, 489 concerned an accident where Plaintiff Krein, an employee of the Tuolumne Water District, fell from a bridge at his place of employment and “sustained paraplegic injuries.” Du-All served its expert witness disclosure, identifying the two experts it expected to call at trial – a health and safety management consultant and a structural engineer. On the same day, Plaintiffs also served their expert witness disclosure, similarly identifying a safety consultant and a structural engineer. Plaintiffs also disclosed five other experts to testify on various topics. Following its receipt of Plaintiffs’ expert disclosure, Du-All retained supplemental experts to rebut the anticipated testimony of Plaintiffs’ experts. Du-All served a supplemental expert disclosure pursuant to CCP §2034.280. Plaintiffs filed a motion to strike the supplemental expert disclosure, which the trial court granted.

The Court of Appeal held that the trial court erred when it struck the experts on the supplemental disclosure because “Du-All complied with the express language of the expert designation statutes.” (*Du-All, supra*, 34 Cal.App.5th at 497.) The Court of Appeal distinguished *Fairfax*, noting the defendant in *Fairfax* did not initially disclose any experts and admitted it was his wait and see approach was “his express intent.” Additionally, the Court of Appeal noted there was prejudice in *Fairfax*, as the improper expert testimony the court allowed resulted in the defense verdicts. However, in *Du-All*, there was no prejudice found. (Id. at 501.)

Here, Plaintiffs did not initially designate any expert(s) to testify at trial. Instead, Plaintiffs reserved the right to later supplement, modify, or change the designation. (Mot. Ex. B.) Plaintiffs later served a “supplemental designation of expert witnesses” that listed a contractor and an appraiser. Defendant’s initial designation included two appraisers and two California-licensed general contractors. (Mot. Ex. A.)

The present case is more similar to *Fairfax* than *Du-All*. Plaintiffs did not initially provide any experts and instead waited until after Defendant provided its experts to supplement its designation. Importantly, when Plaintiffs finally designated two experts, they named a contractor and an appraiser. Plaintiffs indicated the contractor was expected to provide “rebuttal” testimony “with respect to the cost of replacing demolished structures in 2019...on the subject property.” (Wrage Decl. ¶13(b).) The designated appraiser was expected to provide “rebuttal” testimony “with respect to the valuation and/or appraisal of the Subject Property before and after the removal of the Structures in 2019, including any testimony regarding the methodology applied for the current valuation or alleged diminished value due to the removal of the Structures in response to testimony offered by Defendant/Cross-Complainant’s expert(s).” (Wrage Decl. ¶14(b).) Plaintiffs cannot argue they could not anticipate the issues of the cost of a restoration and valuation were surprise issues – the operative FAC seeks judicial declarations concerning restoration of the demolished structures and replacement cost of those structures. (FAC, Prayer ¶1(b)-(c).) Plaintiffs put these very issues before the court. Plaintiffs argue they only seek declaratory relief, which is true, and that Florence

seeks damages under multiple alternative theories. However, the FAC frames the issues as follows: “[a]n actual controversy exists between [the Parties]...as to whether Plaintiffs were required to rebuild the demolished sale building and other structures on the Premises or pay their value to Defendant” and “what the value of the change in condition of the Premises is for the purpose of any damage claimed by Defendant.” (FAC ¶50.) Furthermore, Plaintiffs propounded discovery about the value of the demolished buildings, the diminished value of the property, and any documents addressing the cost of restoring the demolished buildings. (Laird Decl. Ex F, Request for Production of Documents Nos. 7-9.) It is difficult to imagine Plaintiffs did not know valuation of the property and restoration cost were issues when Plaintiffs specifically propounded discovery regarding that information.

There is also an element of prejudice here. Trial is set to start on August 28, 2026. The expert discovery cutoff is August 13, 2026. Unlike in *Du-All* where expert depositions had not yet begun and no prejudice was shown; the parties here are days away from a hard cut off. Expert depositions had not yet been taken when the initial designations were served, but Plaintiffs noticed depositions of Defendant’s experts to take place early August on July 17, 2026. (Wrage Decl. ¶¶14-15.) Thus, Plaintiffs were able to notice expert depositions over 10 days before Defendant even knew of Plaintiffs’ supplemental experts. Given this timing, Defendant will not be able to meaningfully conduct discovery on Plaintiffs’ experts. Plaintiffs contend Defendant then withheld its experts from sitting for depositions until the instant motion was resolved, meaning Plaintiffs are now prejudiced from completing expert discovery. The evidence presented by Plaintiffs indicates Defendant withheld its own experts for depositions given the pending motion. (Wrage Decl. ¶¶19-20.) However, Laird offered to produce two of Defendant’s experts for depositions on August 7 and August 11. (Wrage Decl. ¶20.) Plaintiffs note a deposition date for expert Agamata has not yet been set, which poses a “serious timing problem.” (Wrage Decl. ¶21.) Ultimately, these facts do not change the issue that Plaintiffs’ supplemental designation resulted in prejudice for Defendant as Defendant had very limited time to depose the newly designated experts.

Plaintiffs assert they will be moving ex parte to continue the trial date. (Wrage Decl. ¶22.) The court denied the ex parte on August 5, 2026. (8/5/26 Minute Order.)

Plaintiffs argue Defendant manufactured prejudice because Defendant withheld the meet and confer letter concerning the expert designation for seventeen (17) days. The letter from Attorney Laird to Attorney Wrage is dated July 10, 2026, but was not sent to Attorney Wrage until July 27, 2026. (Wrage Decl. Ex. 6.) Assuming *arguendo* that Attorney Laird withheld the meet and confer letter, the letter was still sent before Plaintiffs provided the supplemental designation on July 29, 2026. Defendant anticipated Plaintiffs would attempt the “wait and see” approach the court rejected in *Fairfax*. The fact that Defendant did not send a meet and confer letter until July 27, 2026, does not change Plaintiffs’ behavior. Even if Defendant had sent the letter on July 10, 2026, Plaintiffs, under their reasoning, still could have waited to submit the supplemental designation until July 29, 2026. The issue of timing and prejudice remains the same regardless of when Attorney Laird sent the meet and confer letter.

Plaintiffs note Defendant's expert designation did not include expert witness declarations for two of the named witnesses. Defendant argues Plaintiffs' objections to Defendant's designation of Ali Malaklou and Husam Samarah does not bar the instant motion. Plaintiffs objected that Malaklou and Samarah lacked a compliant expert witness declaration under CCP §2034.260(c). Defendant notes it is "prepared to withdraw Mr. Samarah as an expert witness and will not offer opinion testimony from him" and "[t]he same applies to Mr. Malaklou; however, as Florence's principal, Mr. Malaklou was always a witness Plaintiffs had to anticipate..." (Mot. p.7:11-15.) Defendant is correct that any objections Plaintiffs have to Defendant's designating Malaklou and Samarah as experts is not presently before the court and does not impact the court's ruling on the motion to strike.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2407045	CROSSCOUNTRY MORTGAGE, LLC vs CUEBAS	DEMURRER ON CROSS-COMPLAINT OF NATIVE AMERICAN TECHNOLOGY SERVICES AS TO CAUSE(S) OF ACTION

Tentative Ruling:

The Court GRANTS CrossCountry's Request for Judicial Notice. The Court OVERRULES the demurrer as to the first cause of action. The Court SUSTAINS the demurrer with thirty-days leave to amend as to all other causes of action.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2503871	MCKINZIE vs LEMCO PRECISION, INC.	MOTION FOR ORDER TO DEEM MATTERS ADMITTED MOTION TO DEEM THE TRUTH OF MATTERS SPECIFIED IN DEFENDANT'S REQUESTS FOR ADMISSIONS, SET ONE

Tentative Ruling:

No tentative ruling; the Court requests appearances, either in person or telephonically.